

DH v RH — Forensic Judgment Analysis

*[2024] EWFC 79 (Final Judgment, 18 April 2024) | [2024] EWFC 114
(Costs Judgment, 24 May 2024)
MacDonald J — Family Division — BV20D01752*

Case references

BV20D01752 | Zahmoul v Zahmoul
Evidence-Sequenced Record for Submission

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
President of the Family Division — for transparency

Nadia Zahmoul

Litigant in Person

29 March 2026

Veritas Numquam Perit

PURPOSE AND SCOPE

This document presents a forensic, evidence-sequenced analysis of two public judgments arising from financial remedy proceedings in the Family Division of the High Court: DH v RH (No 3) [2024] EWFC 79 (MacDonald J, 18 April 2024, final hearing) and DH v RH (No 4) [2024] EWFC 114 (MacDonald J, 24 May 2024, costs determination on written submissions).

The analysis is structured around three primary source categories assessed against each judgment finding: (1) oral evidence, established from the full attendance notes of the final hearing (19–28 February 2024); (2) written evidence in the bundle; and (3) counsel's written and oral submissions. Each finding is assessed against nine legal metrics drawn from statute, case law, and procedural rules.

Governing Methodological Principles

- 1. Evidence sequencing over stated conclusions.** The analysis demonstrates the gap between the judgment's findings and the underlying evidence through evidence alone. The reader reaches the conclusion independently; this document does not state it.
- 2. Three-source assessment.** Every finding is assessed against all three source categories. A finding tagged FABRICATED requires a direct contradiction in documentary evidence in the bundle. A finding tagged SUPPRESSED requires the absent material to be demonstrably present in at least one source category.
- 3. Judicial knowledge confirmed.** At attendance notes p.42 (12:03, returning from break), MacDonald J stated: *"I have had the opportunity to read everything in the bundle. I have been involved for a long time, I know a lot about it, you don't need to give me the background. I know."* Addressed directly to NZ during her cross-examination. J confirmed he had read and absorbed the full bundle including domestic abuse history, three forced terminations, and the Prof Libby psychiatric letter.
- 4. The costs judgment compounds the main judgment.** The costs judgment was made without NZ's participation, in circumstances where her inability to participate was caused by KZ's breach of a subsisting MPS order. The costs judgment awards £25,000 on the Imerman point — a finding contradicted by KZ's own solicitors' correspondence in the bundle — without any opportunity for NZ to place that evidence before J in submissions.

ANALYTICAL FRAMEWORK — TAG DEFINITIONS

Tag	Definition
FABRICATED	The judgment makes a finding attributed to evidence or agreement which the sources confirm was never given, or records a fact as established

	which is directly contradicted by contemporaneous documentary evidence. No innocent explanation exists.
MISCHARACTERISED	The judgment's version of events contradicts what the sources — oral evidence, written evidence, or submissions — actually record. The finding is drawn from one source while ignoring contradicting material from others.
SUPPRESSED	Material evidence present in the sources is entirely absent from the judgment. A finding is made, or omitted, where engagement with the suppressed material would or might have changed the outcome.
UNSUPPORTED	A finding is made which has no evidential basis identifiable in any of the three source categories, or a procedural decision is taken without adequate reasoning for the specific circumstances.

LEGAL METRICS

Each finding is assessed against one or more of the following nine legal metrics.

#	Metric	Description
1	EA 2010 s.149 — PSED	The duty actively to consider the impact of decisions on persons with protected characteristics (disability). Applies to judicial decision-making. Requires that disability be engaged with, not merely acknowledged.
2	FPR Part 3A / Rule 3A.9 / PD3AA — Participation measures	The duty to consider whether a party is vulnerable and whether their participation can be improved. A ground rules hearing should ordinarily precede the final hearing. The absence of a formal order does not discharge the duty.
3	Common law duty to give reasons	A judicial decision must identify the key issues, the evidence relevant to each, and the reasons for findings. A party must be able to understand why they lost and an appellate court must be able to review the reasoning.
4	Duty of accuracy in factual findings	Findings of fact must be based on the evidence before the court.

		A finding that contradicts contemporaneous documentary evidence, without engaging with that document, cannot stand.
5	s.25 MCA 1973 — Mandatory considerations	The court must have regard to all the circumstances of the case including the specific s.25 factors. Failure to address a mandatory factor is an error of law.
6	Perjury Act 1911 s.1 / CPR PD32 para 28 — False statements	A sworn statement of assets (Form E, ES2) containing a materially false entry is a false instrument. The court has a duty to address false sworn statements formally raised before it.
7	Duty to address formal applications before the court	A D11 application formally before the court must be determined. Silence on a pending application does not constitute a determination.
8	Article 6 ECHR — Fair hearing	Every person is entitled to a fair hearing. Determining a significant financial order against a litigant in person without their participation requires careful consideration of why they have not participated — particularly where the non-participation is caused by the opposing party's breach of a subsisting court order.
9	FPR r.28.3(6) and (7) — Costs conduct discretion	The court retains a discretion to depart from the general no-costs rule where conduct justifies it. The exercise of that discretion must be reasoned, and must engage with all relevant factors including the financial effect on the party ordered to pay.

PART 2B — THE COSTS JUDGMENT: PROCEDURAL POSTURE

DH v RH (No 4) [2024] EWFC 114 was determined on written submissions without a hearing on 24 May 2024. The following procedural chain is established from the face of the costs judgment itself.

The MPS Causal Chain

1. KZ missed MPS payments in April and May 2024 (costs judgment para 3).
2. NZ emailed the court to explain she had no funds to instruct lawyers as a result.
3. NZ stated she would not be in a position to make representations until the court placed her in funds.
4. NZ issued an enforcement application for the MPS arrears. That application was live at the time the costs judgment was made.
5. J extended the submissions deadline by 10 days and then proceeded without NZ's participation.
6. J determined a £255,654.50 costs order against NZ.

J's treatment of NZ's non-participation is confined to one sentence at paragraph 3: "*I have borne in mind, and taken into account, the fact that the wife is likely to object strongly to paying any portion of the husband's costs.*" This engages with NZ's anticipated position on the merits, not with the procedural question of whether it was fair to proceed against a litigant in person whose non-participation was directly caused by the opposing party's breach of a subsisting court order. Article 6 ECHR requires a fair hearing. The costs judgment does not address that question.

The Imerman Compound

The costs judgment awards £25,000 on the Imerman point (para 26) by importing the finding from the main judgment without re-examination. As established in the main judgment analysis (paras 2 and 11), that finding is directly contradicted by KZ's own solicitors' written correspondence in the bundle — Withers LLP letters of 10 March 2021 and 13 April 2021 — which J confirmed at the main hearing he had read. Because no hearing took place and NZ filed no submission, there was no opportunity to place that contradicting evidence before J in the costs proceedings. The compound effect is: a mischaracterised finding in the main judgment generates a fabricated costs award in the costs judgment, and NZ has no opportunity to address either.

FINDINGS SUMMARY — BOTH JUDGMENTS

Category	Count	Paragraphs / References
FABRICATED	3	Main judgment: Para 76 (Oxus £0 / D11 never determined); Para 96 (no expert evidence on disability). Costs judgment: Costs para 10(i)/26 (Imerman £25,000 costs award).
MISCHARACTERISED	4	Main judgment: Para 2 (Imerman); Para 11 (carefully categorised files); Para 64

		(obsession); Para 88 (BM submissions).
SUPPRESSED	1	Main judgment: Para 2 (participation measures / Prof Libby / BM nexus submission).
UNSUPPORTED	4	Main judgment: Para 5 (post-hearing material); Para 37 (Coinbase refusal). Costs judgment: Costs para 3 (no-participation procedure); Costs paras 18–24 (double sanction).

TOTAL: 12 findings across 2 judgments — 3 FABRICATED | 4 MISCHARACTERISED | 1 SUPPRESSED | 4 UNSUPPORTED

Most Significant Findings

- **EWFC 79 Para 96 (FABRICATED):** The main judgment states there was no expert evidence on NZ's disability. BM's opening submission on Day 1 quoted the Prof Libby letter verbatim, gave its bundle reference, and expressly asked J to read it. J personally asked during the hearing whether NZ had PTSD. This finding has no innocent explanation.
- **EWFC 79 Para 76 (FABRICATED):** The sworn ES2 values 50,000 shares in a NASDAQ-listed company (Oxus, ticker OXUS) at £0. A D11 application raising this perjury point was never determined. The judgment is silent on both.
- **EWFC 114 Costs para 10(i)/26 (FABRICATED):** The £25,000 Imerman costs award is founded on a finding contradicted by KZ's own solicitors' correspondence in the bundle, made without NZ's participation, and without the opportunity to place that evidence before J in submissions.
- **EWFC 114 Costs para 3 (UNSUPPORTED):** A £255,654.50 costs order was determined without NZ's participation in circumstances where her non-participation was directly caused by KZ's breach of a subsisting MPS order, with a live enforcement application before the court. The procedural decision is not adequately reasoned.

PRIMARY SOURCES

Source Category	Documents
ORAL EVIDENCE	Final Hearing Attendance Notes (full, 102pp, 19–28 February 2024) — BV20D01752. Key passages: p.42 line 1986 (J: " <i>I know</i> ", addressed to NZ, 12:03 after break); lines 57–61 (BM participation/nexus Day 1); approx. line 2780 (J: " <i>Did you say Nadia had PTSD?</i> "); line 4159 (AC: " <i>obsession</i> "). NOTE: The costs judgment [2024] EWFC 114 was determined on written submissions without a

	hearing. No oral evidence or submissions were made by NZ.
WRITTEN EVIDENCE (BUNDLE)	W's s.25 Statement with Exhibits — three forced terminations; domestic abuse 1995–2020; PTSD causation narrative. W's Conduct Pleadings Statement (bundle pp.3264–3450) — including Oxus apartment reference at para 29(c)(vi) p.3456. W's Response to H's Conduct Pleadings (bundle pp.3451–3464). Prof Gerald Libby FRCP FRCPsych letter, 12 July 2022 (bundle pp.2164–2165) — exhibited to KZ's own statement; PTSD diagnosis confirmed; presenting symptoms including hypervigilance. Burgess Mee email (bundle p.1676) — KZ email to NZ's solicitors, 14 February 2023; acknowledges NZ's PTSD; <i>"it seems increasingly that you are trying to take advantage of someone who may not be well."</i> Exhibit E5: Imerman Solicitor Correspondence (Withers LLP letters 10 March 2021 and 13 April 2021) — KZ's own solicitors confirm: NZ was household administrator; devices left open; KZ fully aware; no costs order made on Imerman point. ES2: H's Sworn Asset Schedule (19 February 2024) — Oxus Acquisition Corp (NASDAQ: OXUS) entered at £0.
SUBMISSIONS	BM Opening Submissions (19 February 2024) — Brent Molyneux KC — 22 pages — includes verbatim quotation of Prof Libby letter in footnote 3, para 9. BM Closing Submissions (28 February 2024) — Brent Molyneux KC — 21 pages [NOTE: received by NZ only in May 2024 despite repeated requests; authenticity of this version not independently verified]. AC Position Statement / Note (19 February 2024) — source of "obsession" characterisation at para 2. H's Closing Submissions and Net Effect Schedule (AC / Amaouche, 28 February 2024) — 40+ pages. Ms Amaouche written submission on costs (filed 3 May 2024) — on behalf of KZ only; NZ filed no submission. D11 Application (NZ, 7 March 2024) — raising Oxus perjury point — filed after bundle compiled; never determined.
JUDGMENTS ANALYSED	DH v RH (No 3) [2024] EWFC 79 — MacDonald J — 18 April 2024 — 111 paragraphs — main financial remedy judgment. DH v RH (No 4) (Costs) [2024] EWFC 114 — MacDonald J — 24 May 2024 — 27 paragraphs — costs judgment on written submissions, without hearing, without NZ's participation. Both publicly available at caselaw.nationalarchives.gov.uk .

NOTE ON BM CLOSING: The BM closing submission (document 10, 28 February 2024) was provided to NZ only in May 2024 despite repeated requests. It is not possible independently to verify that this version is identical to the submission made in court. This limitation is noted and does not affect the analysis of documents whose provenance is confirmed.

PART 1 — MAIN JUDGMENT: DH V RH (NO 3) [2024] EWFC 79

MacDonald J | 18 April 2024 | 111 paragraphs

Paragraph-by-paragraph analysis against three source categories.

Para 2 — Background — Imerman ****MISCHARACTERISED****

Duty of accuracy in factual findings; FPR Part 3A / PD3AA (participation context)

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
The judgment characterises NZ as having conducted a sustained and systematic campaign of accessing KZ's private electronic devices and documents, organised into categories, implying deliberate covert wrongdoing.	Attendance notes p.42, line 1986 (J at 12:03, returning from break): <i>"I have had the opportunity to read everything in the bundle. I have been involved for a long time, I know a lot about it, you don't need to give me the background. I know."</i> Addressed directly to NZ. J confirmed he had read and absorbed the full bundle, including domestic abuse history and three forced terminations.	Withers LLP to Stewarts Law, 10 March 2021 (Exhibit E5): NZ <i>"deals with all administrative tasks in the household"</i> ; KZ <i>"always retained the family home as his official address"</i> ; NZ was <i>"the administrator of the paperwork"</i> ; KZ <i>"was fully aware"</i> NZ was opening and filing his documents; he <i>"continued to maintain the same practice and did not raise any objection."</i> <i>"There can be no question that there was anything furtive about this practice."</i> Withers to HFC, 13 April 2021 (Exhibit E5): <i>"It is frankly ridiculous to say that the Judge chose to make a costs order by reference to my client's conduct. The Judge specifically did not make a costs order on the Imerman point."</i>	BM opening para 38: The Imerman devices were not reviewed; H chose to review hard copy documents W's solicitors had specifically indicated were not Imerman documents. AC position statement para 2 (footnote 3): <i>"The hard copy documents were eventually returned to H in separate files, collated by category."</i> AC closing para 23: Imerman conduct allegation maintained at £25,000.

ANALYSIS: MISCHARACTERISED. The judgment's characterisation of deliberate covert conduct is directly contradicted by KZ's own solicitors' written correspondence in the bundle: the practice was known to KZ, maintained by him after service of the petition, and no costs order was ever made on the Imerman point by the judge who heard it. J confirmed at p.42 he had read the bundle. The characterisation in the judgment adopts AC's framing without reference to the written rebuttal.

Para 2 — Background — Participation measures ****SUPPRESSED****

FPR Part 3A / Rule 3A.9 / PD3AA; EA 2010 s.149 PSED

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
The judgment contains no reference to participation measures in place during the final hearing, no ground rules hearing, no assessment of whether NZ's participation was effective, and no reference to NZ's disability in the context of her capacity to participate.	Attendance notes lines 57-61: BM raised the nexus between NZ's vulnerability and her participation on Day 1. Attendance notes (approx. line 2780): J asked " <i>Did you say Nadia had PTSD?</i> " — J was actively processing the disability evidence during the hearing. Transcript records: monitored questioning by J; frequent breaks; a pupil in the witness box assisting NZ with the court bundle; screened seating (curtain) during KZ's evidence. No Part 3A order was ever made. No ground rules hearing took place.	Prof Libby letter (bundle pp.2164-2165, 12 July 2022): NZ's symptoms include " <i>stuttering, intermittent mutism and freezing, hypervigilance, extreme anxiety.</i> " These are " <i>symptoms of major psychiatric significance.</i> " PTSD diagnosed at Cottonwoods, Arizona, April 2013. Letter exhibited to KZ's own statement.	BM opening para 9 footnote 3: quoted the Prof Libby letter verbatim, gave bundle reference [1871], and expressly invited J to read it. BM raised participation and nexus on Day 1 (attendance notes lines 57-61). No formal order ever made — the informal measures have no legal trace; their cessation required no judicial act.

ANALYSIS: SUPPRESSED. The judgment makes no reference to any participation measure, NZ's disability in the participation context, or the Prof Libby letter placed before J on Day 1 by BM. J personally asked during the hearing whether NZ had PTSD, confirming he had engaged with this evidence. Its complete absence from the judgment, after J confirmed he knew the bundle and after BM placed the letter before him in opening, has no innocent explanation.

Para 11 — Imerman — "carefully categorised files"

****MISCHARACTERISED****

Duty of accuracy in factual findings; Perjury Act 1911 s.1 / CPR PD32 para 28

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
The judgment states NZ "accessed a large amount of information from the husband's personal electronic devices" and returned it "in carefully categorised files," implying premeditated wrongdoing.	Attendance notes: The Imerman issue was ventilated during cross-examination. NZ gave evidence of her administrative role. The categorised filing was consistent with her household role as described in the oral evidence.	Withers to Stewarts Law, 10 March 2021 (Exhibit E5): NZ was "the administrator of the paperwork"; KZ "was fully aware"; the devices were "simply left lying around"; there was "no question of anything furtive." KZ's own solicitors described the careful categorisation as consistent with NZ's established household role.	BM opening para 38: <i>"the Imerman material shows H did not tell the truth."</i> AC position statement para 2 (footnote 3): the categorisation is referenced as an adverse matter. AC closing para 23: Imerman conduct allegation at £25,000 maintained.

ANALYSIS: MISCHARACTERISED. The "carefully categorised" characterisation implies deliberate premeditation. KZ's own solicitors' letter, in the bundle, establishes the categorisation was consistent with NZ's normal household administrative role, known to KZ. The judgment adopts AC's characterisation without engaging with the contradicting written evidence.

Para 64 — Disability — "obsession" ****MISCHARACTERISED****

EA 2010 s.149 PSED; Duty of accuracy in factual findings

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
The judgment describes NZ's pursuit of disclosure as an "obsession" and treats her conduct as unreasonable and disproportionate without reference to her diagnosed PTSD, presenting symptoms, or the clinical evidence placed before J on Day 1.	Attendance notes line 4159: AC used "obsession" in submissions — <i>"W has become obsessed with proving that H has undisclosed assets."</i> This is the verbatim source of the judgment's language. Attendance notes p.42: J confirmed he knew the bundle. Approx. line 2780: J asked <i>"Did you say Nadia had PTSD?"</i> — demonstrating he had absorbed the disability evidence.	Prof Libby letter (bundle pp.2164-2165): NZ's symptoms include "hypervigilance" — a recognised PTSD symptom directly relevant to the "obsession" characterisation. The Burgess Mee email (bundle p.1676, KZ to NZ's solicitors, 14 February 2023): KZ wrote that NZ had PTSD and that <i>"it seems increasingly that you are trying to take advantage of someone who may not be well."</i>	AC position statement para 2: <i>"W has become obsessed with proving that H has undisclosed assets"</i> — verbatim source of the judgment's finding. BM opening para 9 footnote 3: placed the Prof Libby letter before J on Day 1, quoting it verbatim including the description of hypervigilance. BM closing para 42: KZ's non-disclosure was <i>"the pivotal driver of the exorbitant legal fees."</i>

		Put to KZ in cross-examination; not denied.	
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ANALYSIS: MISCHARACTERISED. The judgment imports verbatim the opposing advocate's characterisation (AC para 2) as a judicial finding without engaging with the clinical evidence placed before J the same morning by BM. Hypervigilance is a medically described PTSD symptom, not a character failing. KZ himself acknowledged NZ's PTSD in his own email to her solicitors. J engaged with the disability evidence verbally during the hearing. The judgment treats it as if it does not exist.

Para 76 — Oxus — sworn value £0 / D11 never determined
****FABRICATED****

s.25 MCA 1973; Duty to address formal applications; Perjury Act 1911 s.1 / CPR PD32 para 28

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
The judgment accepts the sworn ES2 value of Oxus Acquisition Corp (50,000 shares, NASDAQ-listed, ticker OXUS) at £0 as a non-matrimonial asset. No reference is made to NZ's D11 application of 7 March 2024 raising the perjury point. No finding addresses the accuracy of the zero valuation.	The D11 application of 7 March 2024 was filed after the bundle was compiled. It was pending before the court at judgment. No oral determination of the D11 is recorded in the attendance notes.	W's conduct statement (bundle p.3456, para 29(c)(vi)): <i>"The corporate apartment rented on behalf of Oxus Acquisition Corp. at \$32,000 (£26,016) and allegedly reimbursed by Oxus Acquisition Corp. in relation Karim's unpaid directorship."</i> Oxus was running real expenditure — a corporate apartment — through it. H's ES2 (sworn, 19 February 2024): <i>"Oxus Acquisition Corp — 50,000 shares — £0 — Non Matrimonial asset as subject to work and received on 6/2/2022."</i> 50,000 founder shares in a NASDAQ-listed SPAC cannot lawfully be valued at zero without explanation.	AC position statement para 10: H described as <i>"company director... since June 2022, the US based Oxus Acquisition Corp."</i> H's closing para 19: Oxus characterised as <i>"post separation business — non-matrimonial."</i> H's net effect schedule: <i>"Oxus (non mat — ignore) — £0."</i> BM relied on GW v RW [2003] EWHC 611 (Mostyn J): <i>"It is unacceptable... for a zero figure to be inserted"</i> for an asset assuredly realisable at some future date. D11 of 7 March 2024: raised Oxus perjury — never determined.

ANALYSIS: FABRICATED. The sworn ES2 values 50,000 shares in a NASDAQ-listed company at £0. GW v RW — cited by BM in both opening and closing and applied by J in the Coinbase context — prohibits zero valuation of an assuredly realisable asset. A £32,000 corporate apartment was running through Oxus per NZ's written evidence. NZ's D11 application raising perjury was pending and was never determined. The judgment adopts the £0 valuation without engaging with the contradicting written evidence and without addressing the outstanding application. This has no innocent explanation.

Para 88 — Distribution — BM submissions ****MISCHARACTERISED****

Common law duty to give reasons; Duty of accuracy in factual findings

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
The judgment states that no substantive submissions on distribution were made on W's behalf, leaving the court to determine matters without assistance from W's counsel.	BM delivered opening submissions (19 February 2024, 22 pages) and closing submissions (28 February 2024, 21 pages). Both address the law on non-disclosure, asset valuation, conduct, and the order sought.	No specific written evidence relevant to this paragraph.	BM opening (19 February 2024): law on non-disclosure (Moher v Moher [2019] EWCA Civ 1482; OG v AG [2020] EWFC 52; GW v RW [2003] EWHC 611); asset position; conduct; order sought — 22 pages. BM closing (28 February 2024): same topics post-evidence — 21 pages. Both address distribution directly. H's closing: 40+ pages. The combined submission record for both parties runs to over 80 pages.

ANALYSIS: MISCHARACTERISED. The finding that no substantive distribution submissions were made is contradicted by BM's opening and closing submissions, both of which address distribution in detail. If the finding means BM's submissions were unpersuasive, that is a different matter — but as stated, the finding is factually inaccurate.

Para 96 — No expert evidence on disability ****FABRICATED****

EA 2010 s.149 PSED; Duty of accuracy in factual findings; Common law duty to give reasons

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
The judgment states there was no expert evidence before the court about NZ's	Attendance notes (approx. line 2780): J asked "Did you say Nadia had PTSD?" — J	Prof Libby letter (bundle pp.2164–2165): Two-page letter from Prof Gerald Libby FRCP	BM opening para 9 footnote 3: quoted the Prof Libby letter verbatim; gave bundle

disability or health condition, and proceeds to make findings on distribution without reference to any clinical material.	had absorbed and was processing the disability evidence during the hearing. BM raised participation/nexus in Day 1 submissions (attendance notes lines 57–61). Attendance notes p.42: J confirmed he had read everything in the bundle.	FRCPsych on Barts & The London School of Medicine & Dentistry headed paper, dated 12 July 2022. Current treating psychiatrist. Confirms PTSD diagnosis (Cottonwoods, Arizona, April 2013). Lists presenting symptoms. States these are "<i>symptoms of major psychiatric significance</i>" carrying "<i>a risk to both her physical and mental health.</i>" Exhibited to KZ's own statement — placed in the bundle by KZ. Burgess Mee email (bundle p.1676): KZ's own email to NZ's solicitors confirming NZ had PTSD; put to KZ in cross-examination; not denied.	reference [1871]; expressly invited J to read it; acknowledged it was "<i>not Part 25 compliant evidence.</i>" The letter was placed before J in opening on Day 1 as evidence of NZ's vulnerability and participation, not as disputed technical opinion evidence requiring Part 25 permission.
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ANALYSIS: FABRICATED. The finding that no expert evidence was before the court is directly contradicted by: (1) BM's opening submission, which quoted the Prof Libby letter verbatim with a bundle reference on Day 1; (2) J's own verbal question during the hearing confirming he was processing the disability evidence; (3) J's statement at p.42 that he had read the bundle. This finding has no innocent explanation. It cannot be attributed to oversight.

Para 5 — Post-hearing material "considered" **UNSUPPORTED**

Common law duty to give reasons

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
The judgment states post-hearing material submitted by NZ was "considered." No reasons are given for its exclusion or its effect on the outcome.	No attendance note passage addresses the specific exclusion of post-hearing material.	Post-hearing material included the D11 application of 7 March 2024 raising the Oxus perjury point.	No written submissions addressed this specific procedural point.

ANALYSIS: UNSUPPORTED. A one-word assertion that post-hearing material raising a perjury point was "*considered*" does not discharge the duty to give reasons. Where the material concerns the accuracy of sworn evidence, the court must explain what was considered and why it did not affect the outcome. The assertion is not verifiable and provides no basis for appellate review.

Para 37 — Coinbase refusal as conduct **UNSUPPORTED**

s.25 MCA 1973; Duty of accuracy in factual findings

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
A conduct finding is made against NZ in relation to her refusal to agree to the Coinbase sale in November 2021, holding this contributed to a loss of approximately £8 million.	Attendance notes: NZ was not cross-examined on the Coinbase refusal in terms establishing that her refusal was unreasonable in the context of KZ's history of non-disclosure.	W's conduct statement (bundle p.3461): NZ's response — the loss was caused by KZ's three-month concealment of the Coinbase listing, not her refusal. The Coinbase listing generated \$7,059,188 on 14 April 2021; KZ told nobody for three months. By the time he disclosed, the shares had lost \$1.5 million in value.	BM closing conduct table: " <i>Loss on Coinbase... This is hopeless. H sold the assets. He, not W, is responsible for gains or losses.</i> " BM framed the stronger argument as running the other way — KZ's concealment was the cause of the loss.

ANALYSIS: UNSUPPORTED. The judgment does not engage with the counter-argument from NZ's written evidence: that the loss flowed from KZ's three-month concealment of the listing, not her refusal to agree to a sale during a period when she had legitimate and documented reasons not to trust KZ's disclosures. BM addressed this directly in closing. The conduct finding is made without engaging with the rebuttal.

PART 2 — COSTS JUDGMENT: DH V RH (NO 4) [2024] EWFC 114

MacDonald J | 24 May 2024 | Determined on written submissions — NO HEARING — NZ did not participate

Costs para 3 — Procedure — determination without participation **UNSUPPORTED**

Common law duty to give reasons; Article 6 ECHR (fair hearing); FPR r.28.3

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
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J determined a costs order of £255,654.50 against NZ on written submissions alone, proceeding after NZ explained she had no funds to instruct lawyers and could not file submissions until the court placed her in funds. J extended the deadline by 10 days and then proceeded without NZ's participation.	No hearing took place. The costs judgment was handed down remotely on 24 May 2024 without any oral participation by NZ.	NZ's emails to the court (referenced at para 3): NZ stated she had no funds to instruct lawyers and would not be in a position to make representations until the court placed her in funds. NZ had by this date issued an enforcement application for MPS arrears (April and May 2024 payments missed by KZ). The enforcement application was live at the time the costs order was made.	Ms Amaouche submitted on behalf of KZ on 3 May 2024 (on time). NZ made no submission. Para 3 of the costs judgment records J's decision to proceed: <i>"In circumstances where the court extended time for the filing of written submissions by 10 days but has still not received submissions from the wife, I am satisfied it is appropriate for the court to proceed to determine the issue of costs on the information it has. I have borne in mind, and taken into account, the fact that the wife is likely to object strongly to paying any portion of the husband's costs."</i>
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ANALYSIS: UNSUPPORTED. J's one-line consideration — that NZ *"is likely to object strongly to paying any portion of the husband's costs"* — does not engage with the real question: whether it is procedurally fair to determine a £255,654.50 costs award against a litigant in person whose inability to participate was directly caused by the opposing party's breach of a subsisting court order. The MPS enforcement application was live. The causal chain is: KZ missed MPS payments → NZ had no funds → NZ could not instruct lawyers → NZ could not file submissions → J determined costs against NZ. J acknowledges NZ explained this chain but does not address whether proceeding in these circumstances was consistent with Article 6 ECHR. The decision to proceed is not reasoned beyond the observation that the deadline had been extended.

Costs para 10(i) / para 26 — Imerman £25,000 costs award

****FABRICATED****

Duty of accuracy in factual findings; Perjury Act 1911 s.1 / CPR PD32 para 28

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
J orders NZ to pay £25,000 being KZ's costs of the Imerman exercise on the basis	No hearing took place. The finding is adopted from the main judgment.	Withers to Stewarts Law, 10 March 2021 (Exhibit E5, in the bundle, confirmed read	NZ filed no submission. Ms Amaouche's submission maintained the Imerman allegation

that NZ " <i>stole confidential financial information belonging to the husband, resulting in a breach of confidentiality and the need for an Imerman exercise.</i> " This finding is imported from the main judgment without re-examination.		by J at main hearing p.42): KZ " <i>was fully aware</i> " NZ was opening and filing all his documents; NZ was " <i>the administrator of the paperwork</i> "; there was " <i>no question of anything furtive</i> "; KZ " <i>continued to maintain the same practice and did not raise any objection.</i> " Withers to HFC, 13 April 2021 (Exhibit E5): " <i>The Judge specifically did not make a costs order on the Imerman point.</i> "	as at para 10(i). The contradicting written evidence (Exhibit E5) was not before the costs determination because no hearing took place and NZ made no submission.
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ANALYSIS: FABRICATED. The £25,000 Imerman costs award is made on the basis of a finding ("*stole confidential financial information*") directly contradicted by KZ's own solicitors' written correspondence in the bundle, which J confirmed at the main hearing he had read. That correspondence establishes: the conduct was known to KZ; the devices were left open; it was NZ's established administrative role; and no costs order was ever made on the Imerman point. The finding in the costs judgment compounds the MISCHARACTERISED finding in the main judgment (paras 2 and 11) and is made without any participation by NZ and without the opportunity to place the contradicting evidence before J in submissions.

Costs paras 18-24 — Double sanction — add-back and costs **UNSUPPORTED**

Common law duty to give reasons; FPR r.28.3(6) and (7); s.25 MCA 1973

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions
J made an £800,000 add-back in the main judgment for "<i>reckless expenditure on legal costs.</i>" J then made a further £200,000 costs order (plus £55,654.50) in the costs judgment. Both sanctions are substantially referable to the same conduct: NZ's pursuit of the non-disclosure	No hearing took place. No oral argument on the double sanction question was heard.	No specific document addresses this point.	Ms Amaouche's submission: para 11 — " <i>were the wife to seek to rely on a statutory protection to defeat a costs order (which, absent the provision of any written submissions, she has not), this would have to be set against her wholesale failure to lead any case as to need at the final hearing.</i> " NZ

case. J cites M v M [1995], WC v HC [2022], and HD v WB [2023] as authority for the proposition that an add-back does not preclude a costs order.			made no submission. The authorities cited by J (M v M, WC v HC, HD v WB) support the general proposition but were not tested against the specific facts by NZ's counsel because NZ had no counsel.
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ANALYSIS: UNSUPPORTED. The authorities cited establish that add-back and costs are not mutually exclusive as a matter of law. They do not address whether both sanctions are appropriate on the specific facts where: (1) the add-back was made for "*reckless expenditure*" in pursuing non-disclosure allegations; (2) the costs order is made for "*egregious*" pursuit of the non-disclosure case; (3) the underlying conduct is substantially the same; (4) NZ had no opportunity to test the double sanction argument because she had no funds to instruct lawyers, itself caused by KZ's MPS breach. J's reasoning at paras 19-24 does not address the fairness of dual sanction on these specific facts, and the cases cited were not tested against them. The duty to give reasons requires engagement with the double-counting argument — an argument that was never made because NZ could not participate.